promulgation, unless the disallowance of such ordinance by Her Majesty . . . Or unless such ordinance shall be controlled or superseded by some law made by the Governor-General in Council'.[16] It is this provision, confined as it was to situations of emergency only which related to 'peace and good government' limited to a six-month period, that found its way into Article 123 of the Indian Constitution.

Ordinances became ubiquitous in three ways in the regulatory scheme of everyday governance following the Government of India Act 1935, which replaced that of the act of 1915 of the same name. First, ordinances were to be the usual method of governance, rather than being unusual, because they were to be the preferred mechanism of legislative choice.[17] Second, a single ordinance for a particular matter under consideration was not enough, as there had to be a sequence or succession of ordinances, on the same matter for good effect. Third, ordinances began to be used side-by-side and in tandem with conventional legislative arrangements. A prime example of this is the Public Safety Ordinance. This, as Dam reminds us, was introduced in the Legislative Assembly in September 1928. What it did was to authorize, 'the removal from British India . . . of certain persons engaged in subversive propaganda',[18] only for the Assembly to reject it.[19]

Lord Irwin, however, was convinced of the necessity of such legislation in the interests of 'good government' and pressed ahead and 'promulgated the ordinance that incorporated the provisions earlier rejected by the assembly. The law set a new precedent, making ordinances an executive alternative to parliamentary legislation. Clearly aware of his extraordinary innovation, the governor-general invoked the support of the 'vast majority of India's people' in promulgating it. In a statement attached to the ordinance, he explained the 'serious character of [his] personal decision', claiming that he had no doubt that his action would command 'the approval of that vast majority of India's people who have faith in India's future and whose first desire is to see their country prosperous, contended and secure'.[20] But if this is right then the much-vaunted 'good government' had to be in the interests of the people being governed and there is much evidence that it was not shown to be so. The meaning of 'emergency' was